

**-Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

July 24, 2026

#	Case Name	Tentative
1.	Kennedy vs. Emanuel 22-01248389	1. Motion to Seal 2. Motion to Seal (previously scheduled for July 31, 2026) The Court will note the parties agreed to advance the Motion to Seal set for July 31, 2026, to this date. Plaintiffs Drake Kennedy and Stephanie Kennedy's Motions to Seal (ROA Nos. 1834 and 1851) are GRANTED. (Cal. Rules of Court, Rule 2.551, subd. (b).) The Court finds that Plaintiffs have made a sufficient factual showing to justify sealing. The clerk is directed to file the underacted versions of the Jackson Tidus documents attached as Exhibits 3-7 (the "Jackson Tidus Exhibits") to the Conditionally Under Seal Declaration of David C.

		Palmer in Support of Plaintiffs’ Response to Defendants and Non-Party KBS Holdco, LLC dba Regency Outdoor Advertising’s Objection to Report and Recommendation of Discovery Referee UNDER SEAL. NOTE: The Court notes Plaintiff filed a Notice of Lodging Documents Conditionally Under Seal on 3/9/26 (ROA #1845) referencing the Conditionally Under Seal Declaration of David C. Palmer in Support of Plaintiff’s Reply in Support of Motion to Compel Further Deposition of Third Party Michael Tidus. However, no such document has been received by the Court. Plaintiff is directed to electronically submit the Under Seal Declaration of David C. Palmer in Support of Plaintiff’s Reply in Support of Motion to Compel Further Deposition of Third-Party Michael Tidus pursuant to this order. The redacted versions of these filings will remain as a publicly accessible record of this case. THESE RULINGS ARE FINAL Plaintiffs to give notice of each ruling.
2.	Ramirez vs. Laurelmont Community Association 24-01419703	Motion for Leave to File Amended Complaint Plaintiffs Christina Ramirez and Kenneth Johnson’s motion for leave to file a Third Amended Complaint is GRANTED. (Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761 [“policy of great liberality in permitting amendments”]; <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048 [“[i]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment”].) Defendant ServiceFirst Restoration, Inc., the only party who has opposed the motion, has not substantiated any claimed prejudice, nor shown any other grounds to deny the motion sufficient to overcome the liberal policies favoring amendment. Further, whether the proposed new claims are legally sufficient, or factually meritorious, may be determined later. (<i>Kittredge Sports Co. v. Superior Court</i>, <i>supra</i> at 1048 [“the preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings”].)

		Moving plaintiffs shall separately and electronically file and serve the proposed Third Amended Complaint (Ex. A to moving papers), within five court days. Separate e-filing is required to ensure the pleading is properly indexed in the court’s electronic filing system. The Case Management Conference scheduled for August 13, 2026, is CONTINUED to February 25, 2027, at 9:30 a.m. in Department C12. Moving plaintiffs shall give notice.
3.	Powell vs. Daryani 25-01526978	1. Demurrer to Amended Complaint 2. Case Management Conference Defendants Bijan Daryani, Asad Daryani, and Cars 4 Movie, LLC’s demurrer to plaintiff Christopher Powell’s First Amended Complaint [FAC] is SUSTAINED, with leave to amend, on grounds of failure to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) The demurrer on grounds of uncertainty is OVERRULED. (Code Civ. Proc., § 430.10, subd. (f).) The FAC is not “so incomprehensible that a defendant cannot reasonably respond.” (<i>A.J. Fistes Corp. v. GDL Best Contractors, Inc.</i> (2019) 38 Cal.App.5th 677, 695, internal quotes omitted; see also <i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135 [“We strictly construe such demurrers because ambiguities can reasonably be clarified under modern rules of discovery”].) Further, moving parties’ arguments as to the propriety of punitive damages and/or rescission should have been addressed by a motion to strike, not a demurrer. (<i>Kong v. City of Hawaiian Gardens Redevelopment Agency</i> (2002) 108 Cal.App.4th 1028, 1047 [“a demurrer cannot rightfully be sustained ... to a particular type of damage or remedy”]; <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1682 [“demurrer does not lie to a portion of a cause of action”].) <u>1st C/A: breach of contract.</u> This cause of action fails to state sufficient facts. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) The FAC fails to allege how the contract, the attached “EBay Motors Vehicle Purchase Agreement,” was breached. Rather, the factual allegations only address fraud / concealment. (FAC, ¶ BC-2; “Combined Attachments: BC-1, BC-2, FR-2a, FR-2b and FR-3a,” ¶¶ 4-6.)

Further, the FAC fails to allege sufficient facts to show how the individual defendants are liable for alleged breach of the “EBay Motors Vehicle Purchase Agreement,” which is in the name of defendant Cars 4 Movie, LLC. While agency allegations are considered ultimate facts (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 437), an agent is ordinarily not liable on a written contract executed on behalf of a disclosed principal, absent bad faith which is not alleged (*Area 51 Productions, Inc. v. City of Alameda* (2018) 20 Cal.App.5th 581, 603, FN 13). Further, the alter ego allegations are insufficient. (“Combined Attachments: BC-1, BC-2, FR-2a, FR-2b and FR-3a,” ¶ 1; *Robbins v. Blecher* (1996) 52 Cal.App.4th 886, 892 [alter ego elements]; *Vasey v. California Dance Co.* (1977) 70 Cal.App.3d 742, 749 [“The allegation that a corporation is the Alter ego of the individual stockholder is insufficient to justify the court in disregarding the corporate entity in the absence of allegations of facts from which it appears that justice cannot otherwise be accomplished;” internal citations omitted].)

2nd cause of action: fraud / concealment.

This cause of action fails to state sufficient facts. (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [misrepresentation elements], 645 [specific pleading required]; *Roddenberry v. Roddenberry* (1996) 44 Cal.App.4th 634, 665-666 [concealment elements]; *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1472 [concealment requires specific pleading].)

The FAC fails to specifically allege “the names of the persons who made the allegedly fraudulent representations,” “their authority to speak,” to whom they spoke, or the means of representation. (*Lazar v. Superior Court, supra* at 645.) Presuming plaintiff is referring to the representations in the attached online ad by defendant Cars 4 Movie, LLC [which is not clear, as required for specific fraud pleading], there are no facts alleged as to who made the representations on behalf of this entity defendant. (*Id.*)

As to concealment, there are insufficient facts alleged to show a duty to disclose by the individual defendants, for the reasons discussed above; however, duty is sufficient as to the alleged seller, defendant Cars 4 Movie, LLC. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337 [buyer / seller relationship may give rise to duty to disclose]; *Wilkins v. National Broadcasting Co.* (1999) 71 Cal. App. 4th 1066, 1082-1083 [concealment may constitute actionable fraud where the seller is under a duty to disclose facts which materially affect the

		desirability of the product and which seller knows are unknown to the buyer].) There are also no facts alleged supporting scienter, as to either misrepresentation or concealment. Rather, these elements are alleged as a conclusion only. (FAC, ¶¶ FR-2(c), (d) [misrepresentation], FR-3(c) [concealment].) The remaining elements of this cause of action appear sufficiently alleged. (FAC, ¶¶ FR-2 [misrepresentations], FR-3(a) [concealment], FR-5 [reliance], FR-6 [proximately caused damages]; “Combined Attachments: BC-1, BC-2, FR-2a, FR-2b and FR-3a,” ¶¶ 4, 5 [misrepresentations, concealed facts], 6 [reliance], 7 [proximately caused damages].) Plaintiff is granted 21 days to file a Second Amended Complaint. The Case Management Conference is CONTINUED to February 25, 2027, at 9:30 a.m. in Department C12. Moving Defendants to give notice.
4.	Sanchez vs. Newhall 25-01532093	1. Demurrer to Complaint 2. Motion to Strike Complaint 3. Case Management Conference Defendants Forrest Newhall Jr., Colleen Newhall, and Teresa Torre’s Demurrer to the Complaint is OVERRULED in part and SUSTAINED in part. The Special Demurrer for Uncertainty is OVERRULED. Special Demurrer for Uncertainty A party may demur to a complaint or a cause of action on the ground that the pleading is “uncertain.” (Code Civ. Proc. § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by “the inept pleader” are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (<i>Saunders v. Cariss</i> (1990) 224 Cal. App. 3d 905, 908.) A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (<i>Fenton v. Groveland Community Services Dept.</i> (1982) 135

Cal.App.3d 797, 809 (disapproved on other grounds in *Katzberg v. Regents of the University of California* (2002) 29 Cal.4th 300).)

The Complaint names three individual defendants. The Newhalls contend the Complaint identifies them collectively as “Defendants” and fails to differentiate the conduct amongst the defendants. (See *Arce v. Childrens Hospital Los Angeles* (2012) 211 Cal.App.4th 1455, 1467 [trial court found plaintiffs’ claims were “uncertain” because the allegations “lump all of the defendants together, without any specification as to which defendant was responsible for what actions.]

While the Complaint at times collectively refers to the individual defendants as “Defendants” the Complaint also includes specific representations made by Forrest and Torre. Such allegations are relevant to the fraud and negligent misrepresentation claims. The other claims arise out of the Newhall’s position as landlord of the leased premises and the claims are limited to them.

Accordingly, the court finds the Complaint is not uncertain and the special demurrer for uncertainty is OVERRULED.

First Cause of Action – Fraud in the Inducement

The elements of a cause of action for fraud are: (1) misrepresentation, which includes a concealment or nondisclosure; (2) knowledge of the falsity of the misrepresentation, i.e., scienter; (3) intent to induce reliance on the misrepresentation; (4) justifiable reliance; and (5) resulting damages. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 173.) Fraud in the inducement is a subset of the tort of fraud. It occurs when the promisor knows what he is signing but his consent is induced by fraud, mutual assent is present and a contract is formed, which, by reason of the fraud, is voidable. (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294-295.)

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Ibid. [cleaned-up].)

The Complaint alleges that “Defendants” knew or should have known of the habitability defects with the premises. (Complaint, ¶ 33.) Defendant Forrest acknowledged in writing that “the previous tenant lived there for eleven years and apparently never bothered to address [the water tray issues],” thereby admitting knowledge of the ongoing

problems that Defendants failed to remediate before leasing to Plaintiff.” (Id. at ¶ 34.) Forrest also claimed the property was professionally cleaned, denied the mold existence despite photographic evidence, and sought Plaintiff’s assistance in marketing the place to another victim. (Id. at ¶ 36.)

Such allegations are insufficient to state a claim for fraud in the inducement. After the lease was executed, Forrest allegedly stated that Torre did not address the water tray issues. However, there are no allegations to suggest he was aware of such fact prior to Plaintiff’s execution of the lease. While the premises allegedly had several habitability issues, there are no facts to suggest that Forrest had knowledge of them or that his lack of knowledge was based on anything other than perhaps negligence.

As to defendant Torre, the Complaint alleges Forrest authorized her to show the premises to prospective tenants, and that she failed to disclose the existence of serious habitability defects including water damage, mold contamination, plumbing issues, and structural deterioration that she knew or should have known existed. (Complaint, ¶¶ 21, 22.) However, there are no facts to support the conclusion that Torre “should have known” about the existence of the defects or that such defects presented a “serious habitability” issue. Moreover, there are no allegations that Torre made such representations to induce Plaintiff to sign the lease.

The Complaint is devoid of any allegations regarding Colleen other than her status as co-landlord.

Accordingly, the demurrer to the first cause of action is SUSTAINED.

Second Cause of Action – Breach of Implied Warranty of Habitability

“A warranty of habitability is implied by law in residential leases. The elements of a cause of action for breach of the implied warranty of habitability are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages.” (*Peviani v. Arbors at California Oaks Property Owner, LLC* (2021) 62 Cal.App.5th 874, 891 [citation modified].)

Defendants argue there is no cause of action for breach of implied warranty of habitability. Instead, they assert it is solely a defense against a landlord's claims for unlawful detainer or back rent. The Court disagrees.

Defendants have offered no arguments addressing the elements of the cause of action. On reply, they contend the court in the unlawful detainer action found no evidence of breach of habitability. But there is no evidence of such a ruling submitted with this demurrer.

Accordingly, the demurrer to the second cause of action is **OVERRULED**.

Fourth Cause of Action – Negligent Misrepresentation

“The elements of a negligent misrepresentation are (1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage.

Negligent misrepresentation does not require knowledge of falsity” (*Borman v. Brown* (2021) 59 Cal.App.5th 1048, 1060 [citation modified].)

Defendants lump this cause of action with the fraud in the inducement cause of action. The demurrer does not address the elements of a claim for negligent misrepresentation.

Accordingly, the demurrer to the fourth cause of action is **OVERRULED**.

Fifth Cause of Action - Constructive Eviction

A constructive eviction generally occurs when a lessor breaches the covenant of quiet enjoyment with a disturbance of tenant's possession that renders the premises unfit for the purposes they were leased for. (*Pierce v. Nash* (1954) 126 Cal. App. 2d 606, 612–13.)

The Complaint alleges that due to mold contamination, chemical and sewage odors, fiberglass exposure, and VOC contamination, her minor child had respiratory problems and bloody noses. (Complaint, ¶ 93.) Plaintiff was compelled to vacate the premises on June 5, 2025, due to

the safety hazards posed by the premises and Defendants dismissive response.

Such allegations are sufficient to state a cause of action for constructive eviction. Accordingly, the demurrer to the fifth cause of action is **OVERRULED**.

Sixth Cause of Action – Nuisance

A nuisance is a substantial and unreasonable interference with the use and enjoyment of land. (Civ. Code § 3479.) It requires an interference with the property itself (e.g., noise, odor, vibration).

Here, Plaintiff has alleged chemical and sewer odors, among other things, that forced her to vacate the premises. This is sufficient to allege a nuisance.

Accordingly, the demurrer to the sixth cause of action is **OVERRULED**.

Seventh Cause of Action - Violation of Civil Code §§ 1941.1, 1942.4, 1942.5

Civil Code § 1941.1 is the “implied warranty of habitability statute and requires landlords to keep rental properties safe, sanitary and fit for living.

Civil Code § 1942.4 penalizes landlords who demand or collect rent for substandard residential properties if the conditions have existed and have not been abated 35 days beyond the date of service of notice by a “public offer or employee who is responsible for the enforcement of any housing law.” (Civ. Code § 1942.4(a)(3).)

Civil Code § 1942.5 prohibits landlords from retaliating against tenants for lawfully exercising their rights. If a landlord attempts to evict the tenant within 180 days of the tenant’s repair request, the law automatically presumes the landlord is acting in retaliation.

Paragraphs 105 and 107 set forth specific facts to support the Newhall’s alleged violation of sections 1941.1 and 1942.5.

Paragraph 106 does not allege a housing/code enforcement official inspected the premises and issued a written notice for habitability violations that the landlord failed to cure. Therefore, Plaintiff has failed to state a claim for violation of Section 1942.5.

A demurrer must dispose of an entire cause of action to be sustained. (*Thompson v. Spitzer* (2023) 90 Cal.App.5th 436, 451-452.) In this case, however, the seventh cause of action is a catchall cause of action entitled “Statutory Violations” and lists three separate statutes that have allegedly been violated. The Court elects to treat each alleged statutory violation as its own cause of action.

Accordingly, the demurrer to the seventh cause of action as to violation of Civil Code §§ 1941.1 and 1942.5 is OVERRULED. The demurrer to the seventh cause of action as to violation of Civil Code § 1942.4 is SUSTAINED.

Eighth Cause of Action – IIED

To state a cause of action for Intentional Infliction of Emotional Distress (“IIED”), the plaintiff must allege: (1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161.) For conduct to be outrageous for purposes of IIED, the conduct must be so extreme as to exceed all bounds of that usually tolerated in a civilized society. (*Id.*) In addition, “[the defendant’s] conduct [must be] directed at the plaintiff or occur in the presence of a plaintiff of whom the defendant is aware.” (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.)

As stated above, there are no allegations that the Newhalls were aware of the habitability defects at the premises prior to Plaintiff moving in. Yet even assuming they should have been aware, there are no facts to suggest such ignorance was outrageous.

Accordingly, the demurrer to the eighth cause of action is SUSTAINED.

MOTION TO STRIKE

Defendants Forrest Newhall Jr. and Colleen Newhall Motion to Strike is GRANTED.

The Newhalls move to strike Plaintiff’s request for punitive and exemplary damages.

Code of Civil Procedure section 436 provides, “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.”

A motion to strike may be used to remove a claim for punitive damages that is not adequately supported by the facts alleged in the complaint. (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145; *Kaiser Foundation Health Plan, Inc. v. Superior Court* (2012) 203 Cal.App.4th 696.) Civil Code section 3294 states that, “In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” (Civ. Code, § 3294, subd. (a).) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” “‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).)

Based on the Court’s ruling on the demurrer, Plaintiff has failed to allege facts that the Newhalls acted with oppression, fraud or malice.

Accordingly, the motion to strike is GRANTED.

Plaintiff has 21 days leave to amend.

The Case Management Conference is CONTINUED to February 25, 2027, at 9:30 a.m. in Department C12.

Moving Party shall give notice of this ruling.

5.	Kuck vs. Rosenberg 25-01490188	1. Motion for Leave to File Amended Complaint 2. Motion for Order to Stay Proceedings 3. Case Management Conference Plaintiff Rick Kuck’s motion for leave to file first amended complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761; <i>Kittredge Sports Co. v. Superior Court</i> (1989) 213 Cal.App.3d 1045, 1048 [on a motion for leave to amend, grounds challenging sufficiency of the pleading are premature]; see also <i>Sanai v. Saltz</i> (2009) 170 Cal.App.4th 746, 769-770 [error to condition leave to amend on plaintiff producing evidence to substantiate his proposed claims].) Plaintiff is ORDERED to separately file the proposed first amended complaint (Flores Decl. at Ex. B) <u>before July 31, 2026</u>. The first amended complaint must be filed as a separate document to ensure it is properly indexed in the record. <u>Motion to Stay Proceedings</u> Defendant Serene Rosenberg’s motion to stay proceedings is GRANTED IN PART, as follows. (See <i>Avant! Corp. v. Superior Court</i> (2000) 79 Cal.App.4th 876, 887 [factors]; <i>Pacers, Inc. v. Superior Court</i> (1984) 162 Cal.App.3d 686; see also Banuelos Decl. ¶ 4 [pending parallel criminal proceedings, Case No. 25HF0311].) All discovery directed to Serene Rosenberg is STAYED pending the resolution of her parallel criminal case, <i>People v. Rosenberg</i>, Orange County Superior Court, Case No. 25HF0311, or until further order of the court. Discovery directed to any other party to this action may proceed. A Status Conference re: Criminal Proceedings (status of <i>People v. Rosenberg</i>, Case No. 25HF0311) is now set for February 25, 2027, at 9:30 a.m. in Department C12. The Case Management Conference is also CONTINUED to February 25, 2027, at 9:30 a.m. in Department C12. Defendant shall give notice of all the above.
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6.	Ortiz vs. Hyundai Motor America 26-01539730	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Hyundai Motor America’s Motion to Compel Arbitration is DENIED. Defendant’s Request for Judicial Notice is GRANTED. Plaintiffs’ Evidentiary Objections to the Declaration of Ali Ameripour are OVERRULED. (See (<i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218-219.) Defendant Hyundai Motor America seeks an order (1) compelling Plaintiffs to arbitrate their claims, and (2) stay this action pending completion of arbitration. As discussed below, Defendant has failed to meet its burden to demonstrate the existence of an agreement to arbitrate by a preponderance of the evidence. (See <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 345-346.) Defendant’s motion is primarily based on an arbitration provision in the “Owner’s Handbook and Warranty Information” booklet (Warranty) typically found in the glove compartment of a vehicle. . This handbook sets forth the details of HMA’s express warranty, and Plaintiffs’ claims in this action are based in part on the existence of this warranty. (See Ameripour Decl. at Ex. 2.) The arbitration provision is found at pages 13-14 of the handbook and broadly requires binding arbitration of any and all claims between Plaintiffs and HMA related to or arising out of the vehicle purchase, use or performance of the vehicle, or the vehicle warranty, with the exception of Magnuson-Moss Warranty Act claims and claims falling within the jurisdiction of the small claims court, through JAMS under its Streamlined Arbitration Rules & Procedures, or the American Arbitration Association (AAA) under its Consumer Arbitration Rules. (Ameripour Decl. at Ex. 2 [handbook, pp. 13-14].) There is no signature line. Rather, the arbitration provision automatically applies merely by plaintiffs’ use of the vehicle. (Ibid.) “Under the Federal Arbitration Act (FAA; 9 U.S.C. § 1 et seq.), a written agreement to arbitrate ‘shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract’ (9 U.S.C. § 2.) Unless an exception applies, if the matter is arbitrable, the court “shall on application of one of the parties stay the trial of the action until such
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arbitration has been had in accordance with the terms of the agreement” (9 U.S.C. § 3.) [I]n ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. General principles of California contract law guide the court in making this determination. The party seeking arbitration bears the burden of proving the existence of an arbitration agreement,” (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1128.)

The FAA reflects a policy favoring arbitration, requiring that agreements to arbitrate be enforced in the same manner as any other contract. (Ibid.) To form a contract under California law, there must be mutual assent. (*Herzog v. Superior Court* (2024) 101 Cal.App.5th 1280, 1293-1294.) “ ‘Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. The parties’ outward manifestations must show that the parties all agreed ‘upon the same thing in the same sense.’ If there is no evidence establishing a manifestation of assent to the ‘same thing’ by both parties, then there is no mutual consent to contract and no contract formation.” (*Herzog*, at pp. 1293-1294.)

Assent requires notice. (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 944.) “[I]n the absence of actual notice, a manifestation of assent may be inferred from the consumer’s actions ... but any such action must indicate the parties’ assent to the same thing, which occurs only when the [provider] puts the consumer on constructive notice of the contractual terms.” (*Sellers v. JustAnswer LLC* (2021) 73 Cal.App.5th 444, 461

Here, Defendant has presented no evidence (no declarations, no affidavits, and no testimony) Plaintiffs were put on notice of the arbitration agreement in the Warranty prior to the purchase the Vehicle and using it. Nor is there sufficient evidence they received the Warranty.

The Warranty itself did not provide any notice that it contained contractual obligations outside the scope of the warranty. It is simply labeled “2021 Owner’s Handbook & Warranty Information.” The binding arbitration provision appears on page 13 of the Warranty, but to this Court, one could easily miss it unless focused on finding it.

Without notice of the arbitration agreement there can be no assent to its terms. Thus, Plaintiffs, regardless of their apparent manifestation of

	consent by using the vehicle and taking it in for repairs, “[are] not bound by [the subject] inconspicuous contractual provisions of which [they] [were] unaware, contained in a document whose contractual nature is not obvious.” (<i>Sellers</i>, supra, at p. 461 [cleaned-up].) Defendant attempts to muddy the issue of mutual assent by arguing that Plaintiffs are equitably estopped from claiming the arbitration agreement is unenforceable claiming “it would be manifestly unjust to allow Plaintiffs to rely on the Warranty as a basis for this action but then avoid the binding arbitration provision in the Warranty.” The doctrine of equitable estoppel is meant to “prevent a party from playing fast and loose with its commitment to arbitrate, honoring it when advantageous and circumventing it to gain undue advantage.” (<i>Metalclad Corp. v. Ventana Environmental Organizational Partnership</i> (2003) 109 Cal.App.4th 1705, 1714.) Defendant contends Plaintiff’s claims against it fundamentally result from and are inseparable from the Warranty and the alleged obligations of Defendant that flow from the obligations that were created by and through the Warranty. But there is no statement in the Warranty that the warranties contained therein do not apply if Plaintiffs were to opt out of the arbitration agreement. Therefore, the warranties provided by Defendant are not “inseparable” from the underlying warranty. To the contrary, the warranties would still apply even if a consumer opted out of the arbitration agreement. To this Court, no inequity exists in allowing Plaintiffs to pursue a claim for breach of express warranties without enforcing the arbitration agreement. Accordingly, the Court finds Defendant has failed to sustain its burden in demonstrating a valid agreement to arbitrate exists under the Warranty as there was no mutual assent by the parties. For this reason, the Motion is DENIED. Defendant is to file and serve an answer within 30 days. The Case Management Conference is CONTINUED to February 4, 2027, at 9:30 a.m. in Department C12. Moving Party to give notice of this ruling.
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7.	Gaines vs. Irvine Auto Retail II, Inc. 24-01441837	Petition to Confirm Arbitration Award The motion by defendants Irvine Auto Retail II, Inc. dba Norm Reeves Volkswagen Superstore, James Ponce, Taylor Conant, Eric Ferentz, Sal DeAlba, and Robert Yang, to confirm arbitration award is GRANTED in part and DENIED in part. The motion is GRANTED as to defendant Irvine Auto Retail II, Inc. dba Norm Reeves Volkswagen Superstore. (Code Civ. Proc., §§ 1285, 1285.4, 1286.) The court orders a judgment of dismissal shall be entered in favor of defendant Irvine Auto Retail II, Inc. dba Norm Reeves Volkswagen Superstore and against plaintiff Isaiah Clifton Gaines, with plaintiff to take nothing from this defendant, in accordance with the arbitrator's order. (Ex. A to moving papers.) The above defendant shall provide a proposed judgment by August 3, 2026. The Court will also set an OSC re: Compliance with Court Order (Submission of Proposed Judgment) for September 3, 2026, at 9:30 a.m. This is to ensure Defendant Irvine Auto Retail II, Inc. dba Norm Reeves Volkswagen Superstore to ensure the proposed judgment is timely submitted. If the Court signs the judgment, the Order to Show Cause re: Compliance with Court Order will be vacated and no appearances will be necessary. The instant motion is DENIED as to defendants James Ponce, Taylor Conant, Eric Ferentz, Sal DeAlba, and Robert Yang. These defendants were not parties to the original motion to compel arbitration, or this court's prior order 3-7-25 compelling arbitration. Moreover, there is no evidence that these defendants were parties to the arbitration; the arbitrator's order reflects that arbitration was only between plaintiff / claimant Isaiah Clifton Gaines, and defendant / respondent Irvine Auto Retail II, Inc. dba Norm Reeves Volkswagen Superstore. (Ex. A to moving papers.) Thus, there is no basis for this court to grant relief as to the individual defendants in connection with the instant motion. The court's records reflect that defendants James Ponce, Taylor Conant, Eric Ferentz, Sal DeAlba, and Robert Yang had been served with summons, but had not yet appeared when the court ordered this matter stayed pending completion of arbitration on 3-7-25. [See proof of service of summons at ROA 10 (Yang), 11 (DeAlba), 13 (Ferentz), 20 (Conant), 21 (Ponce).]
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		The court orders the prior stay ordered on 3-7-25 to be LIFTED. Defendants James Ponce, Taylor Conant, Eric Ferentz, Sal DeAlba, and Robert Yang are granted until August 3, 2026, to file and serve responsive pleadings. The Status Conference re: Arbitration set for September 3, 2026, is VACATED. A Case Management Conference is set for September 3, 2026, at 9:30 a.m. in Department C12. Clerk shall give notice to all parties.
8.	Padilla Hernandez vs. Pacific Specialty Insurance Company 26-01537689	Motion to Deem Facts Admitted Defendant Pacific Specialty Insurance Company's motion to deem matters admitted is GRANTED. (See Code Civ. Proc., § 2033.280.) The court orders the matters set forth in defendant's first set of requests for admission to plaintiff Mario Padilla Hernandez (Doern Decl. at Ex. A) deemed admitted. Sanctions in the amount of \$960 are GRANTED in favor of defendant and against plaintiff, payable within 30 days of notice. Defendant shall give notice of this ruling.
9.	Beijing Luode Property Management Co., Ltd. vs. Qin 20-01151826	Motion for Attorney Fees On the Court's own motion, this hearing is CONTINUED to August 14, 2026. Court orders Clerk to give notice.
10.	Perry vs. Prestige Surgery Center at Newport Beach 24-01409325	Motion for Summary Judgment and/or Adjudication OFF CALENDAR